

MULEMBE COMMUNITY NSW INCORPORATED CONSTITUTION

(Prepared under the Associations Incorporation Act 2009 (NSW))
Version: Model Constitution (Compliant Draft)

PART 1 – PRELIMINARY

1. Name

The name of the Association is:
Mulembe Community NSW Incorporated
("the Association")

2. Definitions

In this Constitution:

- **Act** means the *Associations Incorporation Act 2009 (NSW)*.
- **Association** means Mulembe Community NSW Incorporated.
- **Committee** means the governing body of the Association elected under this Constitution.
- **Committee Member** means any office bearer or ordinary committee member.
- **Financial Year** means the period ending 30 June each year.
- **Member** means a person whose application for membership has been approved and recorded in the Register of Members.
- **Register of Members** means the official register maintained by the Secretary.
- **Secretary** means the person holding the office of Secretary or, where vacant, the Public Officer.
- **Public Officer** means the person appointed under the Act.
- **Special Resolution** means a resolution passed by at least 75% of votes cast at a general meeting.
- **Welfare Fund** means the voluntary support fund established under this Constitution.

PART 2 – OBJECTIVES

3. Objectives of the Association

The objects of the Association are:

- (a) To promote and preserve Luhya culture, heritage and identity in New South Wales.
 - (b) To promote unity, networking, and mutual support among members and their families. (c) To provide welfare and community support during bereavement, hardship, and emergencies.
 - (d) To organise cultural, social, educational, and community events.
 - (e) To promote inclusion, integration, and positive contribution within Australian society. (f) To cooperate with organisations with similar or aligned objectives.
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PART 3 – MEMBERSHIP

4. Membership Eligibility

4.1 Ordinary Membership

Ordinary membership of the Association shall be open to persons who support the objects of the Association and who meet any of the following criteria:

- (a) are members of the Luhya ethnic group;
- (b) are associated with the Luhya community through marriage; or
- (c) are otherwise approved for membership by the Committee.

A person shall become an Ordinary Member upon approval of their membership application and entry into the Register of Members.

4.2 Membership Fees

The membership fee and annual renewal fee shall be proposed by the Committee and approved by the General Meeting.

Each fee shall initially be **\$30**, unless a different amount is approved in accordance with this Constitution.

The General Meeting may change the membership fee or annual renewal fee. No change shall take effect unless it has been approved by the General Meeting and the effective date has been specified in the resolution approving the change. A change shall not apply retrospectively to fees already paid.

4.3 Notification of Membership Fees

The Association shall notify prospective and existing members of the applicable membership fee and annual renewal fee, including any approved changes, through an official communication method determined by the Committee.

Such notification may be made by written notice, email, the Association's website, social media or any other appropriate method.

The Committee shall ensure that current fees and their effective dates are clearly communicated before collecting any changed fee.

4.4 Payment and Collection of Fees

A person approved for Ordinary Membership shall become a member upon completion of the prescribed membership application process, approval by the Committee and entry in the Register of Members.

The applicable membership fee shall be payable upon admission, and the annual renewal fee shall be payable on or before the member's annual renewal date, or on such other date as may be determined and notified by the Association.

Membership fees shall be paid through payment methods approved by the Committee.

The Treasurer, or another person authorised by the Committee, shall be responsible for receiving and recording membership fees.

The Treasurer shall maintain accurate membership and payment records and shall issue a receipt or other confirmation of payment where practicable.

All membership fees received shall be deposited into the Association's nominated bank account or otherwise handled in accordance with the Association's financial procedures.

4.5 Voting Membership and Commencement of Voting Rights

An Ordinary Member shall become a Voting Member when the member has:

- (a) been approved and admitted as an Ordinary Member; and
- (b) paid the applicable membership fee or annual renewal fee in full.

Voting membership and the associated voting rights shall commence on the date the applicable fee is received by the Association, unless otherwise provided for in this Constitution.

An Ordinary Member whose applicable fee is not current shall remain an Ordinary Member but shall not be entitled to vote or exercise any privilege reserved for Voting Members.

4.6 Expiry and Lapse of Voting Membership

Voting membership shall remain valid while the member's applicable annual renewal fee is current.

If the annual renewal fee is not paid by the applicable renewal date, the member's voting membership and voting rights shall automatically lapse on the day following that renewal date.

The member shall continue as an Ordinary Member unless their membership is otherwise terminated, suspended or ends in accordance with this Constitution.

4.7 Restoration of Voting Membership

Voting membership may be restored when an Ordinary Member pays the applicable outstanding annual renewal fee and any other amount properly approved by the General Meeting.

Voting membership and associated voting rights shall be restored from the date the required payment is received by the Association.

Restoration of voting membership shall not operate retrospectively, and the member shall not exercise voting rights in respect of any period during which their voting membership had lapsed.

4.8 Rights and Privileges

The rights and privileges attached to Ordinary Membership and Voting Membership shall otherwise be as provided for in this Constitution.

5. Application for Membership

5.1 Applications must be submitted through an approved method determined by the Committee.

5.2 The Committee shall approve or reject applications.

5.3 The Secretary must notify applicants of the outcome.

5.4 Membership begins when:

- ☐ (a) approved by the Committee; and
 - ☐ (b) entered in the Register of Members.
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6. Registration of Members

The Association must maintain a Register of Members containing:

- (a) the name of each member;
 - (b) contact address or email;
 - (c) date of membership commencement; and
 - (d) date of cessation, if applicable.
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7. Cessation of Membership

A person ceases to be a member if:

- (a) they resign in writing;
 - (b) they are expelled under Clause 8;
 - (c) their membership is cancelled for non-payment of fees (if applicable)
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8. Discipline and Expulsion of Members

8.1 The Committee may take disciplinary action if a member:

- breaches this Constitution;
- brings the Association into disrepute; or ☐ acts contrary to its objects.

8.2 The member must be:

- informed of the allegation;
- given a reasonable opportunity to respond.

8.3 The Committee may:

- suspend membership; or
- expel the member by resolution.

8.4 The member may appeal to a General Meeting, whose decision is final.

PART 4 – FEES AND FINANCE

9. Membership Contributions

9.1 No joining fee is required unless determined at an AGM.

9.2 Annual contributions may be set at the Annual General Meeting.

9.3 Members must be notified of any approved contributions

10. Welfare Fund

10.1 The Association may establish a voluntary Welfare Fund.

10.2 Participation is optional.

10.3 The Welfare Fund shall be managed in accordance with a Welfare Policy approved by the Committee.

10.4 Welfare funds must be kept in a agreed bank account.

11. Use of Funds

Funds must be applied solely to the objectives of the Association.

No portion of funds may be distributed to members except:

- ☐ reimbursement of approved expenses; or
- ☐ payments authorised by the Committee.

PART 5 – THE COMMITTEE

12. Composition of Committee

The Committee shall consist of:

- (a) Chairperson
- (b) Vice-Chairperson
- (c) Secretary
- (d) Public Officer
- (e) Treasurer
- (f) Events Coordinator
- (g) Welfare Coordinator
- (h) Social Media Coordinator
- (i) Advisory Representative

13. Term of Office

Committee members hold office from the end of the AGM at which they are elected until the next AGM.

14. Functions of the Committee

The Committee shall:

- (a) manage the affairs of the Association;
- (b) implement decisions of members;
- (c) control and supervise finances;
- (d) ensure compliance with this Constitution and the Act.

15. Casual Vacancies

If a Committee position becomes vacant, the Committee may appoint a replacement until the next AGM.

16. Meetings of the Committee

16.1 The Committee shall meet as required.

16.2 A quorum is **50% of Committee members plus one**.

16.3 Decisions are made by majority vote.

PART 6 – ELECTIONS

17. Nominations

16.1 Nominations must:

- (a) be in writing;
- (b) be signed by two members, excluding the nominee;
- (c) include the written consent of the nominee; and (d) be submitted at least 7 days before the AGM.

17. Election Process- Election of Committee Members

17.1 Elections for office-bearer and ordinary Committee member positions shall be conducted at the AGM.

17.2 All Committee positions become vacant at the conclusion of each elected member's term of office, being 12 months, and members are eligible for re-election unless otherwise provided by this Constitution.

17.3 If the number of valid nominations received is equal to or fewer than the number of vacancies, the nominated candidates shall be taken to be elected.

17.4 If the number of valid nominations exceeds the number of vacancies, an election must be conducted by secret ballot.

17.5 Voting must be conducted in a fair and transparent manner and supervised by a Returning Officer appointed by the meeting who is not a candidate in the election.

17.6 Incoming and outgoing Committee members should work collaboratively during a transition and handover period of up to 3 months, unless otherwise determined by the Committee or where exceptional circumstances apply, to ensure continuity and effective transfer of responsibilities.

17.7 If no nomination is received for a particular position, the incumbent may continue to hold office until the next general meeting or until a replacement is elected or appointed in accordance with this Constitution.

17.8 If there is no nomination and the incumbent is not willing to continue, the Committee may appoint an eligible person to fill the vacancy until the next AGM, subject to this Constitution and the Act.

17.1 Nominations must:

- be in writing;
- be signed by two members (excluding nominee);
- ☐ include written consent of the nominee;
- ☐ be submitted 7 days before the AGM.

18. Election Process

18.1 Elections for office-bearer and ordinary committee member positions are to be conducted at the Annual General Meeting (AGM).

18.2 All committee positions become vacant at the conclusion of each elected member's term of office, being 12 months, and members are eligible for re-election unless otherwise provided by this Constitution.

18.3 If the number of valid nominations received is equal to or fewer than the number of vacancies, the nominated candidates are taken to be elected.

18.4 If the number of valid nominations exceeds the number of vacancies, an election must be conducted by secret ballot.

18.5 Voting must be conducted in a fair and transparent manner and supervised by a Returning Officer appointed by the meeting who is not a candidate in the election.

18.6 Incoming and outgoing committee members must work collaboratively during a transition and handover period of at least 3 months, unless otherwise determined by the committee or where exceptional circumstances apply, to ensure continuity and effective transfer of responsibilities.

18.7 If there is no nomination received for a particular position, the incumbent is taken to be elected unopposed and will continue to hold office until the next election is conducted at an AGM.

PART 7 – GENERAL MEETINGS

19. Annual General Meeting (AGM)

19.1 The Association must hold an AGM once each financial year.

19.2 The AGM must be held within 6 months of the financial year end.

19.3 Business includes:

- confirmation of minutes;
- financial reports;
- election of Committee;
- setting contributions.

20. Special General Meetings (SGM)

20.1 An SGM may be called:

- by resolution of the Committee; or
- upon written request of at least 20% of members.

20.2 The Committee must call the meeting within 21 days of receiving a valid request.

21. Notice of Meetings

21.1 Members must be given at least 14 days' notice of general meetings.

21.2 Notice may be given electronically.

22. Quorum

22.1 A quorum is 20% of voting members or 10 members, whichever is greater.

22.2 No business may be conducted without a quorum.

23. Voting

23.1 Each Ordinary Member has one vote.

23.2 Proxy voting is not permitted.

23.3 Decisions are made by majority vote unless otherwise stated.

PART 8 – FINANCIAL MANAGEMENT

24. Bank Account

24.1 The Association must maintain a bank account.

24.2 All withdrawals must be authorised by at least two signatories.

25. Financial Year

The financial year ends on 30 June each year.

26. Financial Reports

Financial statements must be presented at each AGM.

PART 9 – WINDING UP

27. Distribution of Assets

If the Association is wound up:

- (a) surplus assets must be transferred to another non-profit organisation with similar objects;
 - (b) no assets shall be distributed to members.
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28. Amendment of Constitution

This Constitution may be amended only by special resolution at a general meeting.

PART 10 – GENERAL

29. Dispute Resolution

29.1 Disputes must be resolved internally where possible.

29.2 If unresolved, a mediation process must be used.

30. Custody of Records

Association records must be kept by the Secretary General and made available to members upon request.

MULEMBE
COMMUNITY NSW

ADOPTION

This Constitution was accepted and adopted by the Executive Committee on

Date: 21/09/2026

Signed on behalf of the organization by the :

Chairperson Elizabeth Khisa Khisa

Public Officer Natalia Andati Andati

Secretary General Melanie Odundo Odundo



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